

9 Additional Floor Area Ratio

9.1 Compensatory Floor Area Ratio (FAR)

9.1.1 Permissibility and conditions

- (i) Compensatory FAR may be provided by the Authority to the landowner in lieu of land parcel, which is required partly or fully for the following public purposes:
 - a. Development and construction of roads, drains, traffic and transport infrastructure.
 - b. Laying of service utilities such as water supply line, sewer lines, communication lines, electrical substations, electric lines, gas lines etc.
 - c. Development of greenbelts and public parks/playgrounds.
 - d. Any other infrastructure as decided by the Authority.
- (ii) Compensatory FAR shall not be permitted by the authority in following circumstances:
 - a. For earlier land acquisition or development for which compensation has been already paid partly or fully. (a) Where award of land acquisition has been made unless lands are withdrawn from the award by the Appropriate Authority according to the provisions of the relevant Acts, and (b) If the compensation in the form of FAR has already been granted to the owner/applicant.
 - b. Where lawful possession by mutual agreement/or contract has been taken.
- (iii) Compensatory FAR shall as far as possible be provided by the authority in the remaining part of the same plot. In case where it is not possible to use the Compensatory FAR on the same plot, the Authority may allow the owner to use compensatory FAR of the transferred plot on other receiving plot(s) in part or in full for the same land use.
- (iv) The owner shall be allowed Compensatory FAR equal to the permissible FAR on the transferred land, subject to not exceeding the maximum permissible FAR (including purchasable FAR) on the transferred plot.
- (v) If the land use of the remaining plot is earmarked for roads, transportation infrastructure, greenbelt, park and/or playground, where FAR is less than 1.0 or FAR and ground coverage is not permissible, then the Compensatory FAR shall be allowed to be used on any other plot.
- (vi) In case the land use of the remaining plot is proposed for more than one multiple uses in the master/zonal plan, the Compensatory FAR shall be divided proportionately.
- (vii) Compensatory FAR is non-transferable.
- (viii) The transfer of title of land foregone shall be done as per the procedures laid down by the government.

9.2 Purchasable & Premium Purchasable FAR

9.2.1 Permissibility

- (i) In order to make FAR flexible as per market demand, purchasable and premium purchasable FAR in built-up and non-built-up areas shall be permissible to the Applicant only in the following cases:
 - a. On a vacant plot; or
 - b. On a plot where construction is yet to begin as per the sanctioned building plan; or
 - c. To construct a new additional building(s); or

- d. To construct additional floors(s) in cases where building structure was originally designed for additional FAR, but permission was obtained for less FAR.
 - e. Occupied buildings only after ensuring structural safety certification and adequacy of infrastructure facilities.
- (ii) Purchasable and premium purchasable FAR shall be allowed only on roads with ROW 12m and above in built-up and non-built-up areas. For group housing in built-up areas, this is allowed on roads with ROW 9m.
- (iii) Before purchasing additional FAR especially in case of already sanctioned plans, the applicant shall comply with provisions of Real Estate (Regulation and Development) Act, 2016 and Uttar Pradesh Apartment (Promotion of Construction, Ownership and Maintenance) Act, 2010 and other relevant Acts as amended from time to time.

9.2.2 Eligibility for Purchasable & Premium Purchasable FAR

- (i) For the approval of purchasable and premium purchasable FAR, following eligibility criteria shall be fulfilled:
- a. Provision of setback according to the height of the building shall be made as per the standards prescribed in the building byelaws.
 - b. In the group housing scheme, residential units shall be permitted in relation to the purchasable Floor Area Ratio (FAR).
 - c. Structural safety provisions in the building shall be made as per the requirements mentioned in these building byelaws.
 - d. For the proposed building, a no objection certificate regarding fire safety shall be obtained from the fire department and submitted to the authority.
 - e. Parking arrangements shall be made as per the standards prescribed in these building byelaws for the total floor area proposed in the building (after FAR purchase).

9.2.3 Computation of Purchasable & Premium Purchasable FAR

The computation of purchasable FAR (PFAR) and premium purchasable FAR (PPFAR) for buildings across different occupancies in built-up as well as non-built-up areas is dependant on width of the approach road or existing right of way (ROW) and shall be as follows:

Road Width (m)	Base FAR (BFAR)	Purchasable FAR (PFAR)	Premium Purchasable FAR (PPFAR)	Maximum Permissible FAR (MFAR)
(1)	(2)	(3)	(4)	(5) = (2)+(3)+(4)
Up to 12m	B1	Up to 20% of B1	Up to 20% of B1	140% of B1
12 – 24m	B2	Up to 50% of B2	Up to 50% of B2	200% of B1
24 – 45m	B3	Up to 100% of B3	Up to 150% of B3	350% of B1
More than 45m	B4	Up to 100% of B4	Unrestricted*	Unrestricted*

*Note-1: Unrestricted FAR shall be availed in the increments of 0.25 times Base FAR.

Note-2: In case of any difference in the prescribed limits of maximum permissible FAR in chapter-3 to chapter-7 and the table above, the figures in respective chapters will prevail.

Note-3: In case of residential plotted development for both single and multi-units, the maximum permissible (purchasable) FAR is 2.0 irrespective of the width of the approach road, as follows:

Plot Area (sqm)	Base FAR	Max. Permissible FAR (including purchasable FAR)
≥40 - 150	2.00	2.0
>150 - 300	1.80	2.0
>300 - 500	1.75	2.0
>500 - 1200	1.50	2.0
>1200	1.25	2.0

Note 1: In case of residential plotted development, calculation of purchasable FAR is not dependent on the width of the approach road and will be allowed on minimum 9-m /7.5-m or 4.0-m road as the case may be.

For maximum permissible FAR in TOD zones, refer to paragraph 8.2.2.2.

9.2.4 Permission for Purchasable & Premium Purchasable FAR

- (i) Permission for purchasable and premium purchasable FAR in built-up and non-built up areas shall be given on the basis of the recommendation of the technical committee constituted under the chairmanship of the Vice Chairman, Development Authority / Housing Commissioner, Uttar Pradesh Awas Vikas Parishad, in which representatives of Public Works Department, Jal Nigam, District Magistrate, Chief Town and Country Planner, Fire Department and representatives of planning and engineering departments of the concerned authority, are members.
- (ii) The said committee shall examine maps and conduct site inspection of the proposed building based on the following parameters.
 - a. Setback,
 - b. Structural safety,
 - c. Fire safety,
 - d. Parking arrangement,
 - e. Infrastructure facilities, etc.
- (iii) The committee shall submit its report / recommendation to the Vice Chairman / Housing Commissioner on whether purchasable and premium purchasable FAR shall be permitted or not. The Vice Chairman / Housing Commissioner based on the recommendation of the committee shall take decision regarding the approval of purchasable and premium purchasable FAR.
- (iv) Purchasable FAR is an enabling provision and shall not be permitted to any applicant as a matter of right. However, application for purchasable FAR can be rejected by the authority by recording reasons for doing so.

9.2.5 Computation of Fees for Purchasable & Premium Purchasable FAR

Purchasable and Premium Purchasable FAR fee shall be calculated as per the following formula: -

$$C = Le \times Rc \times P$$

C = Charge

Le = Proportional land requirement for purchasable/ Premium Purchasable FAR (sq.m.);

i.e. $FP \div FAR$

FP = Permissible Additional Floor Area (sq.m.) as per PFAR/PPFAR, as the case may be

FAR = Permissible Floor Area Ratio as per Master Plan / Building Byelaws (Base FAR)

Rc = Current rate of land

Note: The current rate of land refers to the circle rate determined by the District Magistrate, where such rate is not available, the current residential rate determined by the Authority/Awas Vikas Parishad whichever is higher.

P = Factor Coefficient for various land use categories.

Factor coefficients as per land use shall be as follows: -

Sl.	Land Use Category	Factor Coefficient (P) Purchasable FAR	Factor Coefficient (P) Premium Purchasable FAR
1	Commercial	0.50	1.0
2	Mixed Use	0.45	0.9
3	Office Buildings / Institutional	0.45	0.9
4	Hotels	0.40	0.8
5	Residential (Plotted)	0.40	-
6	Residential (Group Housing)	0.40	0.8
7	Community Facilities and Infrastructure	0.20	0.4

Example:

In a group housing scheme of plot area of 2000 sq.m. in non-built-up area with approach road of width 30m. The calculation of fees for purchasable and premium purchasable FAR shall be as follows.

Group Housing	FAR		FP	Le	Rc	P	C
Area: Non-built-up Plot Area: 2000 sqm, Road Width: 30m	Permissible	Availed	Add. FAR x Plot Area	FP ÷ Base FAR	Current Land Rate	Factor Coefficient	Charge = Le x Rc x P
Base FAR	2.5	2.5	-	-		-	-
Purchasable FAR	2.5	2.5	5000sqm	2000sqm	35000 Rs/sqm	0.40	Rs 2,80,00,000
Premium Purchasable FAR	3.75	3.0	6000sqm	2400sqm	35000 Rs/sqm	0.80	Rs 6,72,00,000
Total Charge							Rs 9,52,00,000

9.3 Additional FAR on Green Buildings

The Authority shall strive to promote green building concepts and shall provide following incentive in the form of additional FAR, free of cost, for green rated buildings.

- GRIHA Three star/ IGBC Silver / LEED silver or equivalent rating – 3% additional FAR on availed FAR.
- GRIHA Four star/IGBC Gold/LEED Gold or equivalent rating – 5% additional FAR on availed FAR.

- c) GRIHA Five star/ IGBC Platinum/ LEED Platinum or equivalent rating – 7% additional FAR on availed FAR.

Note:

- I. Additional FAR mentioned above in point a), b) and c) shall be awarded after pre-certification from the empanelled agency. This incentive FAR on Green Buildings shall be over and above the MFAR.
- II. In case that the developer fails to achieve committed rating as per pre-certification at the time of final occupancy, a penalty shall be imposed at the rate 2 times of the land cost as per the circle rates for the additional FAR for the rating not achieved.
- III. The authority shall consider certification from any agency identified/ recognised by the State/ Central Government.

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